

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

----- x

DAYSHA BENJAMIN,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER ERIC
HEALY (tax # 947069), POLICE OFFICER DOUGLAS
SORIANO (tax # 949682), JOHN DOES 1-2,

Jury Trial Demanded

Defendants.

----- x

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff alleges that the City of New York, New York City Police Officers of the 43rd Precinct and Rikers Island Correctional Facility medical personnel violated her rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution by falsely arresting her, fabricating evidence against her, maliciously prosecuting her and subjecting her to nonconsensual medical procedures. Plaintiff also asserts claims of false arrest, false imprisonment, malicious prosecution, assault, battery and vicarious liability under New York state law. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide her New York state law claims of false arrest, false imprisonment, malicious prosecution, assault, battery and vicarious liability which form part of the same case and controversy as plaintiff's federal claims under Article III of the United States Constitution.

4. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because the City of New York is located in this District and because the incident in question occurred in this District.

JURY TRIAL

5. Pursuant to Fed. R. Civ. P. 38, plaintiff demands a jury trial.

NOTICE OF CLAIM

6. In connection with plaintiff's claims of false arrest, false imprisonment, malicious prosecution, assault, battery and vicarious liability under state law, a notice of claim and an amended notice of claim were duly filed with the City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filings, and the City has not offered to settle plaintiff's state law claims.

7. This action is brought within one year and 90 days of the incident at issue.

PARTIES

8. Plaintiff is a resident of the State of New York, County of Bronx.

9. The City of New York is a municipal corporation organized under the laws of the State of New York.

10. The individual defendants are members of the NYPD. The individual defendants acted under color of state law and within the scope of their employment as members

of the NYPD at all relevant times herein. The individual defendants are sued in their individual capacities.

STATEMENT OF FACTS

11. Plaintiff is employed as a substitute paraprofessional for the New York City Department of Education. The arrest at issue in this case was plaintiff's first arrest.

12. On August 1, 2015, at approximately 1:00 a.m., plaintiff was a passenger in a car driven by her friend, Brian Kiture.

13. When the car was in the vicinity of Leland Avenue and Story Avenue in the Bronx, NYPD officers, including Eric Healy and Douglas Soriano, stopped the car and allegedly found a gun, ammunition and marijuana in Kiture's possession and arrested him.

14. For purposes of increasing their arrest numbers and obtaining overtime compensation, the defendants arrested plaintiff as well. The arrest of plaintiff was not predicated on probable cause because: (a) Kiture had informed the defendants that the contraband belonged to him, (b) no contraband was found in plaintiff's possession, (c) plaintiff had no knowledge that Kiture was in possession of contraband, and (d) no contraband was in plain view.

15. After placing plaintiff and Kiture under arrest, the defendants took them to the 43rd Precinct in the Bronx.

16. While being interrogated in the 43rd Precinct, Kiture confessed that the contraband belonged to him and that plaintiff had no knowledge of the items.

17. While plaintiff was in the 43rd Precinct, an officer familiar with the arrests told plaintiff that Kiture had confessed and that plaintiff would soon be released.

18. Plaintiff, however, was not released. Despite Kiture's confession and the lack of probable cause to charge plaintiff with any crime, the defendants charged plaintiff with possession of a weapon, ammunition and marijuana.

19. The defendants subsequently took plaintiff to Bronx Central Booking to await arraignment.

20. While plaintiff was incarcerated in Bronx Central Booking, the defendants, acting in concert, misrepresented to the Bronx County District Attorney's Office that plaintiff was found in possession of a weapon, ammunition and marijuana.

21. In furtherance of having plaintiff prosecuted, the defendants, acting in concert, caused the creation of a criminal court complaint falsely charging plaintiff with possession of a weapon, ammunition and marijuana and commenced a felony prosecution against plaintiff. The complaint was signed by defendant Officer Healy.

22. On August 2, 2015, plaintiff was arraigned in Criminal Court, Bronx County.

23. Although it was plaintiff's first arrest, the seriousness of defendants' false allegations resulted in the presiding judge setting bail on plaintiff in the amount of \$5,000.

24. Because plaintiff was unable to immediately post bail, she was taken to Rikers Island Correctional Facility.

25. During the admission process at Rikers, plaintiff was subjected to a humiliating strip search in front of a group of other inmates.

26. During the admission process at Rikers, agents and/or employees of the City of New York at Rikers Island forced plaintiff to give a blood and urine sample. Rikers

personnel did not obtain plaintiff's informed consent before performing these offensive and unwanted procedures.

27. It was reasonably foreseeable to the NYPD defendants that if they filed false felony charges against plaintiff, she would be incarcerated at Rikers Island and subjected to nonconsensual medical procedures and a humiliating and degrading strip search in front of other women.

28. Plaintiff eventually posted bail and was released from Rikers three days after her admission on August 5, 2015, at approximately 3:30 a.m.

29. Plaintiff was suspended from her job as a substitute paraprofessional with the New York City Department of Education because of her false arrest and prosecution.

30. Subsequent to her release from Rikers, plaintiff had to make court appearances in Criminal Court, Bronx County.

31. On August 25, 2015, prosecutors dismissed all of the criminal charges filed against plaintiff.

32. Defendants' illegal conduct as described above caused plaintiff to suffer emotional distress, humiliation, embarrassment, fear, anxiety, substantial inconvenience, a loss of liberty, the pains of incarceration, a violation of her bodily integrity, damage to her personal and professional reputation, and financial loss.

FIRST CLAIM

(§ 1983; FALSE ARREST)

(Against All Defendants)

33. Plaintiff repeats the foregoing allegations.

34. Defendants, acting under color of state law, arrested and imprisoned plaintiff without legal justification or probable cause in violation of § 1983 and the Fourth Amendment.

35. Defendants intended to confine the plaintiff, plaintiff was conscious of her confinement, plaintiff did not consent to her confinement, and plaintiff's confinement was not privileged or lawful.

36. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

37. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

SECOND CLAIM

(§ 1983; MALICIOUS PROSECUTION)

(Against All Defendants)

38. Plaintiff repeats the foregoing allegations.

39. Defendants, acting under color of state law, maliciously misrepresented to prosecutors that plaintiff had violated the law and initiated a prosecution against plaintiff which terminated in plaintiff's favor.

40. Defendants' conduct violated § 1983 and the Fourth Amendment.

41. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

42. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

THIRD CLAIM

(§ 1983; FABRICATION OF EVIDENCE)

(Against All Defendants)

43. Plaintiff repeats the foregoing allegations.

44. Defendants, acting under color of state law, maliciously misrepresented to prosecutors that plaintiff had violated the law in violation of § 1983, the Fair Trial Clause of the Sixth Amendment and the Due Process Clause of the Fourteenth Amendment.

45. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

46. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

FOURTH CLAIM

(§ 1983; NONCONSENSUAL MEDICAL PROCEDURES)

(Against All Defendants)

47. Plaintiff repeats the foregoing allegations.

48. Rikers Island medical personnel, acting under color of state law, ordered plaintiff give to give a blood and urine sample against her will in violation of § 1983 and the Due Process Clause of the Fourteenth Amendment.

49. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

50. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

FIFTH CLAIM

(§ 1983; FAILURE TO INTERVENE)

(Against All Defendants)

51. Plaintiff repeats the foregoing allegations.

52. Defendants, while acting under color of state law, had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights under the Fourth, Sixth and Fourteenth Amendments, but they failed to fulfill their constitutional obligation to intervene.

53. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

54. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

SIXTH CLAIM

(§ 1983; MUNICIPAL LIABILITY)

(Against the City of New York)

55. Plaintiff repeats the foregoing allegations.

56. The City of New York is a "person" within the meaning of 42 U.S.C. § 1983.

57. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

58. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants, other members of the NYPD, and Rikers Island medical personnel are unfit agents and employees of the City who have previously committed acts similar

to those alleged herein, have a propensity for unconstitutional conduct, and/or have been inadequately trained.

59. For example, the City of New York knew prior to the date that plaintiff's rights were violated that defendant Officer Eric Healy has been sued for civil rights violations in *Simon, et al., v. City of New York, et al.*, 14 CV 8391 (S.D.N.Y.) and that he has been the subject of civilian complaints of police misconduct.

60. Despite having the aforesaid knowledge, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly investigate prior allegations of misconduct made against the defendants and other employees and agents of the City and failed to properly train, retrain, supervise, discipline and monitor these individuals.

61. The City of New York's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

62. The City of New York's conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

63. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

SEVENTH CLAIM

(FALSE ARREST/FALSE IMPRISONMENT UNDER N.Y. STATE LAW)

(Against All Defendants)

64. Plaintiff repeats the foregoing allegations.

65. Defendants, acting within the scope of their employment as members of the NYPD, arrested and imprisoned plaintiff without legal justification or probable cause.

66. Defendants intended to confine the plaintiff, plaintiff was conscious of her confinement, plaintiff did not consent to her confinement, and plaintiff's confinement was not privileged or lawful.

67. Because the individual defendants were acting within the scope of their employment when they falsely arrested and imprisoned plaintiff, the City of New York is vicariously liable to plaintiff.

68. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

69. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

EIGHTH CLAIM

(MALICIOUS PROSECUTION UNDER N.Y. STATE LAW)

(Against All Defendants)

70. Plaintiff repeats the foregoing allegations.

71. Defendants, acting within the scope of their employment as members of the NYPD, maliciously misrepresented to prosecutors that plaintiff had violated the law and initiated a prosecution against plaintiff which terminated in plaintiff's favor.

72. Because the individual defendants were acting within the scope of their employment when they maliciously prosecuted plaintiff, the City of New York is vicariously liable to plaintiff.

73. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

74. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

NINTH CLAIM

(ASSAULT UNDER N.Y. STATE LAW)

(Against all Defendants)

75. Plaintiff repeats the foregoing allegations.

76. Rikers Island medical personnel, acting within the scope of their employment, placed plaintiff in fear of imminent harmful and offensive physical contacts without plaintiff's informed consent, which injured plaintiff.

77. Because the Rikers Island medical personnel were acting within the scope of their employment when they assaulted plaintiff, the City of New York is vicariously liable to plaintiff.

78. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

79. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial

TENTH CLAIM

(BATTERY UNDER N.Y. STATE LAW)

(Against all Defendants)

80. Plaintiff repeats the foregoing allegations.

81. Rikers Island medical personnel, acting within the scope of their employment, acting within the scope of their employment, made offensive and nonconsensual physical contact with plaintiff which injured plaintiff.

82. Because the Rikers Island medical personnel were acting within the scope of his employment when they battered plaintiff, the City of New York is vicariously liable to plaintiff.

83. Defendants' conduct caused plaintiff to suffer various personal injuries, including the injuries described herein.

84. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages in an amount to be determined at trial.

WHEREFORE, plaintiff requests the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: October 15, 2015

_____/s/_____
RICHARD CARDINALE
Attorney at Law
26 Court Street, Suite # 1815
Brooklyn, New York 11242
(718) 624-9391